



CHAPTER cxxvii.

An Act to confirm an Order under the Sea Fisheries Acts 1843 to 1893 for the improvement maintenance and regulation of an oyster mussel and cockle fishery in the estuary of the River Tees. [16th August 1909.] A.D. 1909.

WHEREAS the Board of Agriculture and Fisheries have made the Provisional Order set forth in the schedule hereto under the provisions of the Sea Fisheries Acts 1843 to 1893:

And whereas it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order as altered and set out in the schedule hereto shall be and the same is hereby confirmed and all the provisions thereof shall have full validity and force. Order in schedule confirmed.

2. This Act may be cited as the Sea Fisheries (Tees) Provisional Order Confirmation Act 1909. Short title.

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SCHEDULE.

SEA FISHERIES ACTS 1843 TO 1893.

TEES FISHERY ORDER 1909.

Order for the improvement, maintenance and regulation of an oyster mussel and cockle fishery in the estuary of the River Tees.

1. The following are the description and limits of the fishery comprised in this Order (hereinafter called "the Fishery") viz. so much of the foreshore and bed of the estuary of the Tees containing an area of ten square miles or thereabouts as is delineated and defined on a map sealed by the Board of Agriculture and Fisheries (hereinafter called "the Board") and marked A. 1151—1909 the external boundaries of the said fishery being shown on such map by a line coloured pink.

2. The limits of the fishery shall be marked out in such manner as the Board may from time to time direct.

3. The grantees of this Order are the Tees Conservancy Commissioners (hereinafter called "the Commissioners").

4. Save as hereinafter provided no person shall dredge or fish for or take oysters mussels or cockles within the fishery without a licence. A licence in that behalf shall be granted by the Commissioners to any person applying for the same. A licence shall be available only for a period of twelve months from the date specified therein and for use by the person or persons named in the licence and for the use of such vessel or boat (if any) and such instruments as may be respectively specified therein but it shall not be lawful for and no licence shall authorise any person to dredge or fish for or take oysters mussels or cockles from the slag training walls or embankments of the Commissioners between sunset and sunrise and no licence shall authorise any person to dredge or fish for or take oysters mussels or cockles at any time or place or in any manner at or in which it is otherwise prohibited to dredge or fish for or take oysters mussels or cockles respectively.

Licences shall be in a form approved by the Board.

Any person dredging or fishing for or taking oysters mussels or cockles within the fishery shall when required by any fishery officer appointed by the Commissioners produce his licence or shall desist.

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from fishing for and dredging and taking oysters mussels and cockles A.D. 1909.
till the same is produced.

5. The grantees may from time to time appoint suspend or remove and again appoint a water-bailiff or bailiffs Every such water-bailiff shall have the following powers that is to say he may within the fishery enter any vessel or boat used for fishing therein he may examine the catches nets and fishing implements and gear of any such vessel or boat he may seize oysters or mussels illegally taken within the fishery and he may do all other lawful acts for giving effect to the provisions of this Order and of Part III. of the Sea Fisheries Act 1868.

For such purposes he shall be deemed to be a constable and shall have within the fishery the same powers and privileges and be subject to the same liabilities as a constable duly appointed has and is subject to in his constablewick at common law or by statute.

Any person considered by a water-bailiff to have offended against any of the provisions of this Order or of any regulations made thereunder shall when required by such water-bailiff state correctly his Christian name surname and place of abode.

Any person refusing or omitting when so required to state correctly his name and place of abode or wilfully continuing to offend after having been required by a water-bailiff to desist may be apprehended by any water-bailiff or by any person acting in the presence of and by order of a water-bailiff and conveyed before a justice of the peace to be dealt with according to law.

6. There shall be paid to the Commissioners in respect of oysters mussels and cockles dredged or taken by any person within the fishery between midnight on any day and the midnight following the royalties for the time being imposed by this Order not exceeding the amounts following (that is to say):—

For every 132 oysters or any less number two shillings;

For every cwt. of mussels or part thereof one shilling and sixpence;

For every cwt. of cockles or part thereof sixpence.

7. The royalties payable under this Order until the same are altered in manner hereinafter appearing are as follows:—

For every 132 oysters or any less number one shilling;

For every cwt. of mussels or part thereof sixpence.

No royalty shall be payable under this Order in respect of cockles unless and until the same shall have been fixed in manner hereinafter appearing.

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8. Subject to the limit in amount imposed by this Order the Commissioners may at any time fix a royalty in respect of cockles and may from time to time and whether before or after such last-mentioned royalty is fixed revise or vary any or all of the royalties for the time being payable under or in pursuance of this Order by abolishing or re-imposing the same or by increasing or diminishing the amount thereof or otherwise.

Any such fixing revision or variation shall be effected by means of a resolution to be made subject to the same confirmation as if it were a regulation made by the Commissioners under this Order and no such resolution shall take effect until so confirmed.

The royalty prescribed by any such resolution in respect of any kind of shell fish shall until altered be the royalty for the time being imposed by the Order in respect of that kind of shell fish.

9. The whole of the moneys received by the Commissioners from licences tolls fees or otherwise under this Order shall be applied to the improvement maintenance and regulation of the fishery under the powers of the Sea Fisheries Act 1868 Provided that after providing for the expenses incurred in any year in the management and maintenance of the fishery as shown in the accounts required by article 13 the Commissioners may with the approval of the Board before making any other payment out of such moneys apply the sum of 20*l.* or any less sum in or towards payment of the sum of 20*l.* per annum which the Commissioners are under an agreement to pay to Teresa Newcomen of Kirkleatham Hall in the North Riding of the county of York widow her heirs successors and assigns by way of rentcharge on certain fisheries and rights of fishery and of fishing formerly held by the said Teresa Newcomen in consideration of the said Teresa Newcomen conveying unto the Commissioners the said fisheries and rights of fishery and of fishing such fisheries or some of them being included within the limits of the fishery.

10. For the purpose of enforcing payment of the royalties payable under this Order all oysters mussels and cockles found or deemed in manner hereinafter appearing to be found in the possession of any person who is or has immediately come from within the limits of the fishery shall be deemed to have been taken by such person within those limits until the contrary is proved and all oysters mussels and cockles found in any boat or vessel or in any cart or vehicle shall be deemed to be found in the possession of the person or persons for the time being using such boat or vessel or such cart or vehicle and all oysters mussels and cockles found or deemed to be found in the possession of more than one person shall be deemed to be found in the possession of each of such persons in equal quantities until the contrary is proved.

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All oysters mussels and cockles or any of them taken within the fishery shall be deposited at such times and places as the Commissioners may with the approval of the Board prescribe for the purpose of being then and there examined counted or weighed by a water-bailiff and the royalties shall be paid in such manner and at such times and places as the Commissioners with the approval of the Board may appoint. A.D. 1909. A

Any person paying any royalty in accordance with this Order shall forthwith receive a receipt for the same.

The royalties payable under this Order by any person named in a licence shall be payable by and recoverable from any person or persons named in the licence.

11. The foregoing provisions of this Order shall not apply to any person dredging or fishing for or taking or removing oysters mussels or cockles at any time by the written authority of the Commissioners under the hand of their chief clerk and in accordance with the conditions contained in such authority for any scientific purposes or for stocking or breeding purposes.

12. Subject to the provisions of this article the Commissioners may from time to time make regulations to be observed within the whole or any specified part or parts of the fishery and during the whole or any specified part or parts of the year for all or any of the following purposes:—

(i) For determining the marks to be attached or affixed to or painted on vessels or boats or the sails or gear of vessels or boats used in the fishery the use of which is licensed under this Order and which are not registered under and in pursuance of the Sea Fisheries Act 1868 or the Merchant Shipping Act 1894;

(ii) For regulating or prohibiting any mode of or the use of any instrument for dredging fishing for or taking oysters mussels or cockles;

(iii) For restricting or prohibiting either entirely or subject to any exceptions and regulations the dredging fishing for or taking of oysters mussels and cockles or any of them during any period specified in the regulation;

(iv) For fixing the size and condition of or in which oysters mussels and cockles or any of them may not be removed from the fishery and the mode of determining such size;

(v) For providing for the re-deposit in specified localities of any oysters mussels or cockles the removal of which is prohibited by any regulation;

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- (vi) For determining the description of dredges or other fishing instruments to be used in the fishery and the marks to be affixed thereto;
- (vii) For regulating generally the time and manner of dredging fishing for or taking oysters mussels or cockles and for protecting oysters mussels or cockles from injury;
- (viii) For providing for the protection of culch and other material for the reception of spat that is to say of the spawn or young of oysters and mussels or either of them and for the re-deposit in specified localities of such culch as may be dredged or otherwise taken up in fishing;
- (ix) For preventing the deposit on the fishery of five fingers otherwise star fish dogwhelks or other natural enemies of oysters mussels or cockles and for securing the destruction or regulating the disposal of such as may be taken up in fishing;
- (x) For revoking altering suspending or varying any regulation previously made.

Regulations made under this article shall not be of any effect until confirmed by the Board but when so confirmed they shall while they continue in operation have effect as and be deemed to be restrictions imposed or regulations made by this Order.

Before a regulation is confirmed it shall be advertised in such manner as the Board shall direct.

Any regulation shall be revised from time to time when and as required by the Board and any regulation may at any time be cancelled by the Board and shall thereupon cease to have effect.

13. The Commissioners shall render to the Board on the 31st day of August in every year accounts of their income and expenditure under this Order and all other information required by the Board with reference to the fishery in such form as the Board may from time to time require and shall allow the Board or any person appointed by them in that behalf to inspect the fishery and all books accounts and other documents in the possession of the Commissioners relative to the fishery and shall give to the Board or person all such information relating thereto as they or he may require.

14. Nothing in this Order shall affect the power of the Board at any time to make an Order or Orders conferring a right or rights of several oyster mussel and cockle fishery within any portion of the fishery and all the powers and provisions contained in this Order shall be subject to the power of the Board to make such Order or Orders and to any alteration which may be made thereby or consequent thereon.

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15. Whereas the Commissioners of His Majesty's Woods Forests and Land Revenues have consented to the making of this Order: A.D. 1909.

And whereas the consent of the lord of the manor of Wilton and owner of the Wilton estate has been given thereto:

Now therefore it is hereby provided that the power of the Commissioners to make byelaws for protecting the oyster beds cockle beds and muscle or mussel beds within the fishery now vested in the Commissioners under or by virtue of the Tees Conservancy Acts 1852 to 1907 or by grant purchase or otherwise shall during the continuance of this Order be suspended and anything in the above-mentioned Acts to the contrary notwithstanding the fishery shall subject to the provisions and during the continuance of this Order be deemed to be a public fishery and all byelaws as aforesaid made by the Commissioners in pursuance of the powers given by those Acts or any of them shall be and they are hereby repealed so far as such byelaws relate to oysters mussels or cockles.

16. No buildings erections embankments or other works of a permanent nature required in connection with the working and carrying on of the fishery under the provisions of this Order shall at any time be commenced or executed by the Commissioners within the fishery without the previous sanction and approval in writing of the Board of Trade and the Commissioners of Woods nor on any foreshore forming part of the Wilton estate within the fishery without the previous sanction and approval in writing of the owner or owners for the time being of such foreshore.

17. Subject to the provisions of section 45 of the Sea Fisheries Act 1868 and of section 2 of the Oyster and Mussel Fisheries Orders Confirmation Act 1869 (No. 2) this Order shall continue in operation until the expiration of 60 years from its confirmation by Act of Parliament and no longer.

18. Upon the confirmation of this Order by Act of Parliament the Tees Fishery Order 1902 shall cease to operate Provided that any byelaws made by the grantees of the last-mentioned Order shall take effect and continue in force as if they were restrictions imposed or regulations made under this Order but so that they may be altered suspended or revoked by regulation made by the Commissioners under Article 12 of this Order.

19. Save and so far as may be necessary to give effect to this Order nothing herein contained shall in any way increase or diminish any estate right privileges powers or authorities vested in or enjoyed or exerciseable by the King's Majesty.

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A.D. 1909. **20.** This Order may be cited as the Tees Fishery Order 1909.

Made by the Board of Agriculture and Fisheries under the Sea Fisheries Acts 1843 to 1893 this twenty-fifth day of May nineteen hundred and nine.

(L.S.)

T. H. ELLIOTT

Secretary

Board of Agriculture and Fisheries.

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